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CONSTITUTION OF THE LUSHIKISHINI CATTLE FEEDLOT COOPERATIVE

Adopted on: _____ (Date)

Location: Lushikishini, kaMavuso, Phondo Inkhundla, Kingdom of Eswatini

PREAMBLE

We, the undersigned members of the Lushikishini community, hereby establish this Cooperative to engage in cattle feedlot farming for our collective economic benefit and the development of our community. We commit to work together in unity, transparency, and mutual respect under the guidance of our traditional leadership.

ARTICLE 1: NAME AND ADDRESS

1.1 Name

The name of this organization shall be “**LUSHIKISHINI CATTLE FEEDLOT COOPERATIVE**” (hereinafter referred to as “the Cooperative”).

1.2 Address

The Cooperative shall be located at: - **Physical Address:** Lushikishini, kaMavuso, Phondo Inkhundla - **Traditional Authority:** Under Chief Somtsewu - **Region:** Eswatini

1.3 Duration

The Cooperative shall exist indefinitely unless dissolved in accordance with Article 12 of this Constitution.

ARTICLE 2: OBJECTIVES

2.1 Primary Objectives

The Cooperative is established to:

- a) Operate a cattle feedlot business for the economic benefit of its members
- b) Purchase, raise, and sell cattle for profit
- c) Create sustainable income for members and their families
- d) Promote agricultural development in the Lushikishini community
- e) Provide employment and skills development opportunities

2.2 Secondary Objectives

- a) Promote cooperation and unity among members
 - b) Contribute to food security in the community
 - c) Practice environmentally sustainable farming methods
 - d) Transfer knowledge and skills to future generations
-

ARTICLE 3: MEMBERSHIP

3.1 Founding Members

The founding members of the Cooperative are:

No.	Full Name	ID Number	Signature
1	Sibusiso Mavuso		
2	Sanele Dlamini		
3	Zakhele Dlamini		
4	Seluleko Ndwandwe		
5	Sibusiso Dlamini		
6	Temancele Mavuso		
7	Gugu Vilakati		
8	Vuyo Motsa		
9	Neliso Mavuso		
10	Sphumelele Shabangu		

3.2 Membership Requirements

To be a member, a person must:

- a) Be a resident of Lushikishini community
- b) Be at least 18 years of age
- c) Be of sound mind and good character
- d) Be willing to participate in Cooperative activities
- e) Be approved by a two-thirds (2/3) majority of existing members

3.3 New Members

New members may be admitted by:

- a) Written application to the Executive Committee
- b) Payment of a joining fee (amount to be determined by members)
- c) Approval by two-thirds (2/3) majority vote at a general meeting
- d) Signing of this Constitution

3.4 Membership Rights

Each member shall have the right to:

- a) One (1) equal vote on all matters
- b) Equal share of profits (10% per founding member)
- c) Attend and participate in all meetings
- d) Access to Cooperative financial records
- e) Stand for election to the Executive Committee
- f) Propose matters for discussion at meetings

3.5 Membership Duties

Each member shall:

- a) Actively participate in Cooperative activities as assigned
- b) Attend all scheduled meetings (minimum 75% attendance required)
- c) Act in the best interest of the Cooperative
- d) Respect fellow members and traditional leadership
- e) Maintain confidentiality of Cooperative business matters
- f) Not engage in activities that compete with or harm the Cooperative

3.6 Termination of Membership

Membership may be terminated by:

- a) **Voluntary withdrawal** - Member must give 3 months written notice
- b) **Death** - Benefits transferred to designated beneficiary
- c) **Expulsion** - For serious misconduct (see Article 3.7)
- d) **Non-participation** - Absence from more than 3 consecutive meetings without valid reason

3.7 Expulsion Process

A member may be expelled for:

- a) Theft or misappropriation of Cooperative funds or property
- b) Fraud or dishonesty
- c) Violence or threatening behavior toward other members
- d) Repeated failure to perform assigned duties
- e) Actions that bring the Cooperative into disrepute

Expulsion Process: 1. Written complaint submitted to Executive Committee 2. Member given 14 days to respond in writing 3. Disciplinary hearing held with member present 4. Two-thirds (2/3) majority vote required for expulsion 5. Expelled member may appeal to Chief Somtsewu within 30 days

3.8 Exit Settlement

When membership ends:

- a) Member forfeits claim to Cooperative assets and ongoing profits
- b) Member shall be paid their share of accumulated savings (if any) within 90 days
- c) No refund of initial contribution for expelled members
- d) Voluntary withdrawal: Member may receive proportional share of accumulated reserves (excluding fixed assets) after 6-month waiting period

ARTICLE 4: GOVERNANCE STRUCTURE

4.1 General Meeting

The General Meeting is the highest decision-making body of the Cooperative, comprising all members.

4.2 Executive Committee

The Executive Committee shall manage the daily affairs of the Cooperative and consist of:

Position	Name	Responsibilities
Chairperson	Sibusiso Mavuso	Overall leadership, external representation, financial oversight
Vice Chairperson	Sanele Dlamini	Assist Chairperson, lead technical/agricultural matters
Secretary	Zakhele Dlamini	Records, correspondence, meeting minutes
Treasurer	To be elected	Financial management, banking, payments
Operations Manager	Seluleko Ndwandwe	Daily operations, cattle management, work schedules

4.3 Term of Office

- a) Executive Committee members serve for **two (2) years**
- b) Members may be re-elected for a maximum of **three (3) consecutive terms**
- c) Elections held at Annual General Meeting

4.4 Vacancy

If an Executive position becomes vacant:

- a) Remaining Executive members may appoint an interim replacement
- b) Permanent replacement elected at next General Meeting

ARTICLE 5: MEETINGS

5.1 Annual General Meeting (AGM)

- a) Held once per year, in the first quarter
- b) All members must attend (or provide valid excuse)
- c) Agenda includes: Annual report, financial statements, elections, major decisions

5.2 Ordinary General Meetings

- a) Held **monthly** on a date agreed by members
- b) Quorum: At least **seven (7) members** (70%)
- c) Agenda circulated at least 3 days before meeting

5.3 Special Meetings

- a) May be called by Chairperson or any 4 members
- b) At least 7 days notice required
- c) Only matters stated in notice may be discussed

5.4 Decision Making

- a) Ordinary matters: Simple majority (50% + 1) of members present
- b) Important matters (finances >E10,000, new members, constitutional changes): Two-thirds (2/3) majority
- c) In case of tie, Chairperson has casting vote

5.5 Minutes

- a) Secretary shall record minutes of all meetings
 - b) Minutes signed by Chairperson and Secretary
 - c) Minutes available to all members within 7 days
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ARTICLE 6: FINANCIAL MANAGEMENT

6.1 Financial Year

The financial year shall run from **1 January to 31 December**.

6.2 Bank Account

- a) Cooperative shall maintain a bank account in its name
- b) **Three (3) signatories** required: Chairperson, Treasurer, and one other Executive member
- c) **Two (2) signatures** required for all withdrawals
- d) No cash transactions exceeding E1,000 without proper documentation

6.3 Income Sources

- a) Sale of cattle
- b) Grants and donations
- c) Any other lawful income approved by members

6.4 Expenditure

- a) All expenditure must be approved according to the following limits:

Amount	Approval Required
Up to E5,000	Operations Manager + Chairperson
E5,001 - E20,000	Executive Committee
Above E20,000	General Meeting

- b) All payments must be supported by receipts/invoices
c) Petty cash float: Maximum E2,000

6.5 Profit Distribution

Monthly Distribution:

Allocation	Percentage	Purpose
Member Dividends	80%	Equal distribution to 10 members (8% each)
Emergency Reserve	10%	Unexpected costs, animal deaths
Development Fund	10%	Future expansion, equipment

Distribution Schedule: - Profits calculated on the **last day of each month** - Payments made within **7 days** of month end - Members sign for receipt of payments

6.6 Financial Records

- a) Treasurer shall maintain accurate records of all transactions
b) Monthly financial report presented at General Meeting
c) Annual financial statements prepared and audited
d) Records kept for minimum **7 years**

6.7 Emergency Reserve

- a) Emergency Reserve may only be used for:
- Animal disease outbreak
 - Death of animals
 - Essential equipment repair
 - Other emergencies approved by Executive Committee
- b) Reserve must be replenished before profit distribution resumes

ARTICLE 7: OPERATIONS

7.1 Work Schedule

- a) Operations Manager shall prepare weekly work schedules
- b) Members shall perform assigned duties faithfully
- c) Work hours: To be agreed by members (typically 6:00 AM - 6:00 PM rotation)

7.2 Cattle Management

- a) All cattle purchases require Executive Committee approval
- b) Cattle health records maintained for each animal
- c) Veterinary care provided as needed
- d) Sales conducted at prices approved by Executive Committee

7.3 Equipment and Assets

- a) All assets owned collectively by the Cooperative
 - b) Asset register maintained by Treasurer
 - c) No member may sell, lend, or remove assets without approval
 - d) Members responsible for equipment in their care
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ARTICLE 8: DISPUTE RESOLUTION

8.1 Internal Resolution

- a) Disputes between members shall first be addressed through direct discussion
- b) If unresolved, matter referred to Executive Committee
- c) Executive Committee decision within 14 days

8.2 Traditional Authority

- a) Unresolved disputes may be referred to Chief Somtsewu
- b) Chief's decision shall be final and binding

8.3 Mediation

- a) For complex matters, an external mediator may be engaged
 - b) Cost of mediation shared equally by parties involved
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ARTICLE 9: ASSETS AND PROPERTY

9.1 Collective Ownership

All assets acquired by the Cooperative belong collectively to all members, including: - Feedlot structures - Equipment and tools - Cattle (except initial member contributions before integration) - Bank balances - Any other property

9.2 Land

- a) The Cooperative operates on communal land under Chief Somtsewu
- b) Land cannot be sold or transferred without Chief's approval
- c) Members acknowledge the land belongs to the community

9.3 No Individual Claims

No member may claim individual ownership of Cooperative assets during membership or upon exit, except as provided in Article 3.8.

ARTICLE 10: AMENDMENTS

10.1 Amendment Process

This Constitution may be amended by:

- a) Written proposal submitted to Executive Committee
- b) Proposal circulated to all members at least 14 days before meeting
- c) Discussion at General Meeting
- d) Approval by two-thirds (2/3) majority of all members
- e) Signing of amended Constitution by all members

10.2 Fundamental Changes

Changes to profit sharing, membership rights, or dissolution require: - Three-quarters (3/4) majority approval - 30 days notice to all members

ARTICLE 11: REPORTING

11.1 Reports to Members

- a) Monthly: Financial report, operations report
- b) Quarterly: Performance review
- c) Annually: Comprehensive annual report

11.2 External Reporting

- a) Reports to Regional Development Fund as required by grant conditions
 - b) Reports to traditional authority as requested
 - c) Tax and regulatory compliance as required by law
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ARTICLE 12: DISSOLUTION

12.1 Voluntary Dissolution

The Cooperative may be dissolved by:

- a) Three-quarters (3/4) majority vote of all members
- b) Written notice to all stakeholders
- c) Settlement of all debts and obligations

12.2 Asset Distribution Upon Dissolution

Upon dissolution, after settling all debts:

- a) Grant funds/assets may need to be returned per grant conditions
- b) Remaining assets distributed equally among members
- c) If assets cannot be divided, they shall be sold and proceeds distributed

12.3 Records

Records shall be kept for 7 years after dissolution.

ARTICLE 13: GENERAL PROVISIONS

13.1 Compliance with Law

The Cooperative shall comply with all applicable laws of the Kingdom of Eswatini.

13.2 Non-Discrimination

Membership and benefits shall not be denied based on gender, religion, or ethnic origin.

13.3 Confidentiality

Members shall keep Cooperative business matters confidential and not disclose financial information to outsiders without approval.

13.4 Code of Conduct

Members shall: - Act honestly and in good faith - Avoid conflicts of interest - Not accept bribes or improper payments - Treat all members with respect and dignity

ADOPTION AND SIGNATURES

We, the undersigned founding members, hereby adopt this Constitution and agree to be bound by its provisions.

Adopted at Lushikishini on this _____ day of _____ 2026

FOUNDING MEMBERS SIGNATURES:

No.	Name	ID Number	Signature	Date
1	Sibusiso Mavuso			
2	Sanele Dlamini			
3	Zakhele Dlamini			
4	Seluleko Ndwandwe			
5	Sibusiso Dlamini			
6	Temancele Mavuso			
7	Gugu Vilakati			
8	Vuyo Motsa			
9	Neliso Mavuso			
10	Sphumelele Shabangu			

WITNESS:

Chief Somtsewu (Traditional Authority)

Signature: _____

Date: _____

Stamp: _____

WITNESS 2:

Name: _____

ID Number: _____

Signature: _____

Date: _____

This Constitution was prepared in January 2026 for the Lushikishini Cattle Feedlot Cooperative.